

ASCII MASTER FLOW - PANEL 1/22: The printed clause, central question and ownership fence

SYLLABUS (verbatim) -> "Crime and Punishment : Corruption, Mass Violence,
Genocide, Capital Punishment."
ONE PAIRED CONCEPT + FOUR NAMED APPLICATIONS

THE CENTRAL QUESTION -> WHEN, IF EVER, MAY A STATE DELIBERATELY IMPOSE HARM ON
A PERSON BECAUSE OF WHAT THAT PERSON HAS DONE -- AND
HOW MUCH?

THE PREREQUISITE (not padding) -> what makes conduct a PUBLIC WRONG | who is
ANSWERABLE for it | on what TERMS may coercion follow

THE FOUR PRINTED NOUNS ARE STRESS TESTS, NOT FOUR TOPICS

APPLICATION	JOINT IT ATTACKS	WHAT SURVIVAL SHOWS
CORRUPTION	must a public wrong have an IDENTIFIABLE VICTIM?	public wrong needs no assaulted victim
MASS VIOLENCE	does RESPONSIBILITY survive DIVISION OF LABOUR and OBEDIENCE?	division of labour REDISTRIBUTES but does not DISSOLVE it
GENOCIDE	can a wrong be done to a GROUP AS SUCH?	a group's SHARED LIFE is a distinct object
CAPITAL PUNISHMENT	every constraint at once -- IRREVERSIBLE, and it REMOVES the agent	the theory must hold where error CANNOT BE CORRECTED

MASTER DISTINCTION -> punishment is NOT justified merely because conduct is
ABHORRENT. A theory must say WHO may punish, FOR WHAT PURPOSE, WITHIN WHAT
LIMITS, and UNDER WHAT CONDITIONS of responsibility and fair procedure.

OWNERSHIP FENCE rights, duties, accountability, legitimacy of coercion ->
Individual and State | justice, equality, liberty, dignity as ideals ->
Social and Political Ideals | regime design and propaganda -> Forms of
Government | gender doctrine -> Gender Discrimination | caste doctrine ->
Caste Discrimination | moral evil and theodicy -> Philosophy of Religion |
procedure, prisons, statistics, case-law survey -> OUTSIDE THIS PAPER
BOUNDED BRIDGES DIGNITY and EQUAL MORAL STATUS -- name, use as a constraint,
never re-expound | LEGITIMACY OF COERCION -- enters only through DUFF'S
STANDING CONDITION
NOT ROUTED GANDHI and RAWLS are not independently demanded by the 2018-2025
corpus and are not imported as decoration.
CORPUS SHARE -> 12 of 112 parts (2018:1 2019:2 2020:2 2021:1 2022:2 2023:1
2024:1 2025:2). Corruption 5 | Capital punishment 4 | Theory 2 |
Proportionality 1 | GENOCIDE 0 -- and still a full syllabus obligation.

ASCII MASTER FLOW - PANEL 2/22: Crime, moral wrong, and the five criminalisation filters

TWO CIRCLES THAT DO NOT COINCIDE -- AND THE NON-IDENTITY RUNS BOTH WAYS

LEGAL CRIME = conduct prohibited and punishable by a VALID CRIMINAL LAW

MORAL WRONG = conduct violating a JUSTIFIED ETHICAL NORM

+-----+-----+-----+		
A: LEGAL BUT NOT MORALLY WRONG an UNJUST LAW criminalises the innocent	B: LEGAL *AND* MORALLY WRONG the paradigm case	C: MORALLY WRONG BUT NOT LEGAL wrongs that ESCAPE legal definition, enforcement or proof
+-----+-----+-----+		

DIRECTION A -> VALIDITY DOES NOT PROVE JUSTICE (the POSITIVIST'S OWN point)

DIRECTION C -> where much CORRUPTION and STRUCTURAL DEPRIVATION harm lies

|
v

THREE ACCOUNTS, THREE DIFFERENT QUESTIONS -- NOT THREE RIVALS

+-----+-----+-----+		
ACCOUNT	ITS QUESTION	ITS LIMITATION
+-----+-----+-----+		
LEGAL POSITIVIST	what has the law PROHIBITED?	validity does not prove moral justice
+-----+-----+-----+		
MORAL	what wrongful HARM or VIOLATION occurred?	disagreement and vagueness
+-----+-----+-----+		
SOCIOLOGICAL	which NORMS and POWER RELATIONS define deviance?	may weaken LEGAL CERTAINTY and fair notice
+-----+-----+-----+		

|
v

CRIMINALISATION IS ITSELF AN EXERCISE OF POWER -> FIVE FILTERS

- [1] HARM are interests SET BACK?
- [2] RIGHTS does the conduct violate a right -- or would BANNING it?
- [3] PUBLIC WRONG .. is this the COMMUNITY'S BUSINESS, or a private failing?
- [4] CULPABILITY .. can a FAULT ELEMENT be FAIRLY ATTRIBUTED?
- [5] PROPORTION-

ALITY is criminal sanction the LEAST SEVERE ADEQUATE response,
and is the penalty RANGE defensible?

FAIL ANY FILTER -> better handled by regulation, civil liability, taxation
or education

|
v

WHERE THE APPLICATIONS SIT CORRUPTION strains [3] because victims are DIFFUSE

-- carried by BREACH OF ENTRUSTED OFFICE, not by measurable damage | MASS

VIOLENCE and GENOCIDE pass all five and fail at ATTRIBUTION | CAPITAL

PUNISHMENT is a SEVERITY question (Q3), NOT a criminalisation question

ASCII MASTER FLOW - PANEL 3/22: The attribution ladder and the two defences

FOUR STEPS FROM PROHIBITED CONDUCT TO ATTRIBUTED BLAME

- [1] EXTERNAL ACT OR OMISSION (actus reus)
FUNCTION: links liability to CONDUCT, not to THOUGHT

```

CONTROL: an OMISSION requires a RELEVANT DUTY -- otherwise every
|         bystander becomes a principal
v
[2] FAULT ELEMENT (mens rea)
FUNCTION: GRADES answerability
LADDER:  INTENTION -> KNOWLEDGE -> RECKLESSNESS -> NEGLIGENCE ->
|         ACCIDENT (no fault)
CONTROL: offences differ in required fault, but punishment must track
|         ATTRIBUTABLE CULPABILITY
v
[3] CAUSATION AND HARM
FUNCTION: connects AGENCY to the PUBLIC WRONG CHARGED
CONTROL: causal contribution ALONE is NOT sufficient responsibility
v
[4] LEGALITY AND FAIR NOTICE
FUNCTION: prevents RETROSPECTIVE or INDETERMINATE condemnation
CONTROL: legal validity STILL does not prove moral justice
|
v
EVEN THEN, TWO ANSWERS REMAIN -- AND THEY DENY DIFFERENT THINGS
+-----+-----+
| JUSTIFICATION | EXCUSE |
+-----+-----+
| the act was PERMISSIBLE in | the act was WRONG, but blame is DENIED |
| the circumstances | or REDUCED |
+-----+-----+
| e.g. necessary PROPORTIONATE | e.g. DURESS; serious INCAPACITY |
| defence against an UNJUST | |
| threat | |
+-----+-----+
| DENIES: WRONGFULNESS | DENIES: ANSWERABILITY |
+-----+-----+
| IF UPHELD: no wrong was done | IF UPHELD: a wrong was done, by a not- |
| | fully-answerable agent |
+-----+-----+
| THIRD PARTIES: ASSISTANTS | THIRD PARTIES: the wrong REMAINS a |
| may SHARE the justification | wrong, so RESISTANCE stays permissible |
+-----+-----+
DEGREES: excuses come in DEGREES; justifications do NOT -- which is why
PARTIAL EXCUSE is intelligible and PARTIAL JUSTIFICATION is not
|
v
BOUNDARY MARKER this is NOT a criminal-law syllabus inside Philosophy. The
four elements and two defences identify WHY COERCIVE BLAME MAY OR MAY NOT BE
ATTRIBUTED. Mental incapacity enters ONLY through COMPETENCE, CONTROL and
EXCUSE. NO clinical diagnosis and NO legal test is asserted anywhere.

```

ASCII MASTER FLOW - PANEL 4/22: Seven conditions, seven abuses and the causation hinge
SEVEN CONDITIONS A DEFENSIBLE PUNISHMENT PRESUPPOSES -- LEARN THE ABUSE, NOT
THE LIST

#	CONDITION	ABUSE IT BLOCKS
---	-----------	-----------------

1	a PUBLIC LAW known in advance	retrospective condemnation
2	a VOLUNTARY ACT or legally relevant OMISSION	punishment of thought, status or identity
3	CULPABILITY proportionate to the fault ladder	treating the reckless and the deliberate alike
4	FAIR PROCEDURE and RELIABLE PROOF	conviction on suspicion, rumour or pressured confession
5	a COMPETENT and IMPARTIAL AUTHORITY	private vengeance in official dress
6	PROPORTIONALITY between WRONG, RESPONSIBILITY and SANCTION	escalation without ceiling
7	EQUAL APPLICATION without status bias	penalty tracking status, wealth or group rather than conduct

CONDITIONS 5 and 7 ARE NORMATIVE, NOT PROCEDURAL:

5 -> the doorway to DUFF'S STANDING ARGUMENT (Panel 14)

7 -> the foundation of the UNEQUAL-ADMINISTRATION objection (Panel 21)

↓
v

THE HINGE -- RESPONSIBILITY IS NOT CAUSAL CONTRIBUTION

CAUSED IT?		RESPONSIBLE?	
CASE A caused AND responsible the paradigm	CASE B CAUSED but NOT responsible contribution WITHOUT sufficient KNOWLEDGE or CONTROL	CASE C RESPONSIBLE but did NOT directly cause CULPABLE OMISSION by a DUTY-BEARER	CASE D neither no attribution

CASE B -> "HE CAUSED IT" DOES NOT SETTLE BLAME

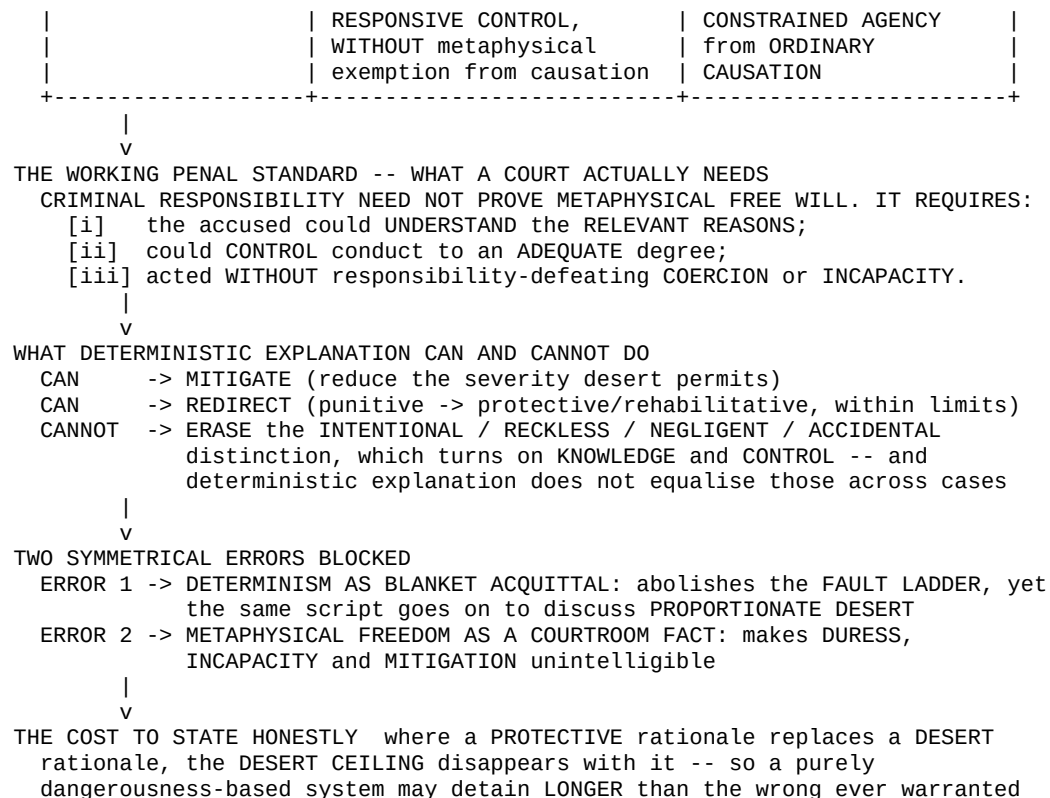
CASE C -> "HE DID NOTHING" DOES NOT SETTLE INNOCENCE

↓
v

CONSEQUENCE FOR THE WHOLE CLAUSE -> DIFFERENTIATED RESPONSIBILITY by ROLE, KNOWLEDGE, CAPACITY and CONTRIBUTION. Case B protects the low-level participant in MASS VIOLENCE from automatic principal liability; Case C reaches the ENABLER, the SUPERVISOR and the OFFICE-HOLDER.

ASCII MASTER FLOW - PANEL 5/22: Freedom, determinism and the working penal standard
THREE POSITIONS -- EACH WITH ITS PENAL IMPLICATION AND ITS DIFFICULTY

POSITION	PENAL IMPLICATION	DIFFICULTY
LIBERTARIAN FREEDOM	DESERT requires genuine ALTERNATIVE POSSIBILITIES	hard to reconcile with CAUSAL EXPLANATION
HARD DETERMINISM	BASIC DESERT undermined; PROTECTION and REHABILI- TATION replace blame	risks treating persons ONLY as DANGEROUS OBJECTS
COMPATIBILISM	responsibility = REASONS-	must DISTINGUISH



ASCII MASTER FLOW - PANEL 6/22: The six theory families on four axes

FAMILY	DOCTRINE	DIRECTION	CENTRAL TEST	DANGER
RETRIBUTIVE	punish because CULPABLE WRONGDOING deserves a PROPORTIONATE response	BACKWARD	DESERT	vengeance / excess
DETERRENT	threaten or impose penalty to REDUCE FUTURE OFFENDING	FORWARD	EXPECTED PREVENTION	using the offender as a MEANS
PREVENTIVE / INCAPACITATIVE	RESTRAIN a DANGEROUS offender to PROTECT OTHERS	FORWARD	NECESSITY and RISK	indefinite or discrimin- atory confinement
REFORMATIVE /	TRANSFORM	FORWARD	REINTEGRA-	paternal-

REHABILITATIVE	CAPACITIES and CONDITIONS for LAWFUL AGENCY		TION	ism; neglect of victims
RESTITUTION / RESTORATIVE	RESTITUTION returns value or repairs loss; RESTORATIVE JUSTICE adds ACCOUNTABLE PARTICIPATION of victim, offender, community	RELATIONAL	ACKNOWLEDGE- MENT, REPAIR REINTEGRA- TION	unequal bargaining; unsuitable for some crimes
DENUNCIATORY / EXPRESSIVE	PUBLICLY CONDEMN the wrong and AFFIRM the NORM VIOLATED	BACKWARD / PUBLIC	AUTHORITA- TIVE CENSURE	hard treatment STILL needs its own justific- ation

THE TWO SCRIPTS ALWAYS OMIT -> PREVENTIVE and EXPRESSIVE. Omitting them is why answers oscillate between only RETRIBUTION and DETERRENCE, and it removes the INCAPACITATION argument (Panel 21) and the WRONGFUL-CONVICTION argument (Panel 13)

RESTITUTION != RESTORATION -> restitution is an OUTCOME; restoration is a PARTICIPATORY PROCESS inside which restitution may be one outcome

ASCII MASTER FLOW - PANEL 7/22: The three justificatory logics and the structured mixed theory

LOGIC	CENTRAL QUESTION	THEORIES	NON-NEGOTIABLE OBJECTION
DEONTOLOGICAL	what is OWED because of CULPABLE WRONG and EQUAL AGENCY?	retribution, desert, rights, proportionality	DESERVED SUFFERING STILL NEEDS A PUBLIC INSTITU- TIONAL PURPOSE
CONSEQUEN- TIALIST	which response PREVENTS FUTURE HARM at LEAST JUSTIFIED COST?	deterrence, prevention, rehabilitation	UTILITY ALONE can TARGET INNOCENTS or PERMIT EXCESSIVE SEVERITY
RELATIONAL / COMMUNICATIVE	what response CONDEMNS, ADDRESSES and REPAIRS while RETAINING MEMBERSHIP?	expressive, communicative, restorative	COERCION, STANDING and UNEQUAL BARGAINING remain

↓
v

THE MIXED THEORY THE TWO GRIDS MAKE AVAILABLE

CONSEQUENTIALIST about the INSTITUTION'S GENERAL AIM
DEONTOLOGICAL in the CONSTRAINTS on LIABILITY and AMOUNT
RELATIONAL in the MANNER of ADDRESS and REPAIR

|
v

OBJECTION -> "a mixed theory is an EVASION: it uses whichever component
supports the conclusion it wants"

REPLY ----> that defeats an UNSTRUCTURED mixture. A STRUCTURED one assigns
each logic a DETERMINATE ROLE and thereby generates THREE TESTABLE
PROHIBITIONS:

- [1] NO punishment of the KNOWN INNOCENT, whatever the preventive
gain
- [2] NO penalty BEYOND the DESERT CEILING, whatever the deterrent
gain
- [3] NO substitution of REPAIR for CONDEMNATION where the wrong
is GRAVE and PUBLIC

RESIDUE --> the PRIORITY ORDERING itself must be defended: why is desert a
CEILING rather than a FLOOR? The mixed theory is a THIRD POSITION
with its own burden, NOT a neutral compromise

ASCII MASTER FLOW - PANEL 8/22: Retributivism -- Kant, Hegel and the limiting reply
THE ARGUMENT IN FOUR STEPS

[1] CRIME ASSERTS A MAXIM INCOMPATIBLE WITH EQUAL RIGHT

v

[2] IMPUTABLE AGENCY MAKES THE OFFENDER ANSWERABLE -- addressed as a
RATIONAL AGENT, not managed as a HAZARD

v

[3] A PROPORTIONATE LEGAL RESPONSE PUBLICLY DENIES THE WRONGFUL MAXIM
HEGEL: punishment NEGATES the crime's wrongful claim; it RESTORES RIGHT

v

[4] PUNISHMENT THEREFORE EXPRESSES RESPECT FOR RIGHT, NOT PRIVATE REVENGE

|
v

KANT, STATED WITHOUT CARICATURE

punishment must answer to the offender's CULPABLE ACT and CANNOT be imposed
MERELY to produce SOCIAL UTILITY; treating a person *ONLY* as an INSTRUMENT
of deterrence violates RATIONAL AGENCY

[!] KEEP THE WORD "ONLY". Kant does not deny that punishment has useful
effects; he denies that USEFULNESS LICENSES IT.

|
v

RETRIBUTION IS NOT REVENGE -- FOUR AXES

+-----+-----+-----+-----+			
AXIS	REVENGE	RETRIBUTION	
+-----+-----+-----+-----+			
WHO ACTS	the injured party	a PUBLIC, IMPARTIAL AUTHORITY	
MEASURE	intensity of grievance	PROPORTIONATE DESERT	
LIMIT	none intrinsic	a CEILING fixed by CULPABILITY	
GENERALITY	this case, this enemy	LIKE CASES ALIKE, impersonally	
+-----+-----+-----+-----+			

|
v

OBJECTION -> "SUFFERING DOES NOT UNDO SUFFERING, and DESERT ALONE cannot show

why the STATE should ADD pain"

REPLY ----> MODERN RETRIBUTIVISM CAN BE *LIMITING* RATHER THAN *MAXIMISING*:

- (a) NO ONE may be punished WITHOUT desert
- (b) NO PENALTY may EXCEED desert

-- desert as a NECESSARY CONDITION and a CEILING, NOT a positive command to inflict. These are PROHIBITIONS, not COMMANDS.

RESIDUE --> [i] the Q1 GAP survives: why the STATE, rather than no one?

- [ii] the CARDINAL ANCHOR must come from OUTSIDE desert (Panel 11)
- [iii] a penalty INSIDE the ceiling may still be administered

DEGRADINGLY -- humane institutions need a separate account

|

v

THE OWNED 2020 STEM IN ONE LINE "Is retributivism against human rights?" ->

AGAINST them if MAXIMISING | THEIR STRONGEST PENAL ALLY if LIMITING, since it is the ONLY family that STRUCTURALLY FORBIDS punishing the innocent AND forbids escalation for preventive gain. A script treating retributivism as ONE THING has answered NEITHER version.

ASCII MASTER FLOW - PANEL 9/22: Deterrence -- presuppositions and two located failures

JUSTIFICATION -> punishment is justified by the EXPECTED REDUCTION OF FUTURE HARM. SPECIFIC DETERRENCE addresses THE OFFENDER | GENERAL DETERRENCE addresses OTHERS

|

v

FOUR PRESUPPOSITIONS -- EACH IS A PLACE THE ARGUMENT CAN FAIL

1	persons respond to PERCEIVED COSTS	FAILS for the impulsive, intoxicated, coerced, ideologically committed
2	sanctions are KNOWN and sufficiently CERTAIN	FAILS where enforcement is rare, slow or arbitrary
3	preventive BENEFITS EXCEED direct and collateral harms	FAILS where damage to families, employment and trust is ignored
4	LESS HARMFUL ALTERNATIVES are INADEQUATE	FAILS where regulation, civil liability or design would serve

|

v

BENTHAM -> all punishment is an EVIL, justified only by PREVENTING A GREATER EVIL

BECCARIA -> CERTAINTY and PROMPTNESS matter MORE than SEVERITY, so ESCALATION is usually the WRONG LEVER

|

v

FAILURE ONE -- LOCATED AT Q2 (WHOM MAY WE PUNISH?)

OBJECTION -> deterrence may justify punishing an INNOCENT person if the social benefit is large enough

REPLY ----> RULE-UTILITARIAN CONSTRAINTS: reliable guilt, legality, due process -- a practice of framing the innocent would destroy TRUST and thus LONG-RUN UTILITY

COUNTER ---> the protection is therefore CONTINGENT ON DISCOVERY. A SECRET injustice, or a POPULAR one, escapes the objection while remaining an injustice. RIGHTS THAT HOLD ONLY WHEN OBSERVED

ARE NOT RIGHTS.

RESIDUE ---> a rights constraint that admits NO AGGREGATION must still say
what happens in genuine CATASTROPHE cases

|
v

FAILURE TWO -- LOCATED AT Q3 (HOW MUCH?)

PURE DETERRENCE PERMITS ESCALATION WITHOUT CEILING: if harsher deters more,
the theory has NO INTERNAL RESOURCE to say STOP. Beccaria's calibration is a
PRUDENTIAL correction, not a PRINCIPLED ceiling.

REPAIR ----> a DESERT SIDE-CONSTRAINT (Panels 8, 11, 12)

|
v

EMPIRICAL DISCIPLINE deterrence is an EMPIRICAL claim: TRUE, FALSE or
UNDETERMINED for a given penalty, and an answer must say which. NEVER write
"proved" or "disproved" without evidence. UNDER UNCERTAINTY THE BURDEN LIES
ON WHOEVER PROPOSES AN IRREVERSIBLE PENALTY.

TRANSFER deterrence is STRONGEST for CALCULATED offences by actors WITH
SOMETHING TO LOSE -> which is why it transfers to CORRUPTION (Panel 18) and
transfers BADLY to crimes of passion and ideological violence

ASCII MASTER FLOW - PANEL 10/22: Prevention against reform, and the four bounds
TWO FORWARD-LOOKING FAMILIES THAT ARE ROUTINELY MERGED

+-----+-----+	
PREVENTIVE /	REFORMATIVE / REHABILITATIVE
INCAPACITATIVE	
+-----+-----+	
RESTRAIN a dangerous	TRANSFORM capacities and conditions for
offender to protect others	LAWFUL AGENCY
TEST: necessity and RISK	TEST: REINTEGRATION
OFFENDER = a SOURCE OF	OFFENDER = an AGENT whose capacities can
RISK to be CONTAINED	be REBUILT
DANGER: indefinite or	DANGER: PATERNALISM; compulsory
DISCRIMINATORY confinement	"treatment"; NEGLECT OF VICTIMS
ALONE: loses the DESERT	ALONE: loses PROPORTIONALITY, since
CEILING	intervention tracks NEED, not DEED
+-----+-----+	

|
v

THE REFORMATIVE DIGNITY ARGUMENT -- FOUR STEPS

[1] PERSONS ARE MORE THAN THEIR WORST ACT (the act is not excused; it does
not EXHAUST the person)

[2] RESPONSIBLE AGENCY CAN BE IMPAIRED *AND REBUILT* -- ignorance,
addiction, trauma, exclusion, distorted incentives, addressed WITHOUT
DENYING RESPONSIBILITY

[3] A HUMANE STATE SHOULD REDUCE FUTURE WRONGDOING THROUGH CAPABILITY, NOT
DEGRADATION

[4] PUNISHMENT SHOULD THEREFORE PRESERVE A ROUTE BACK TO MEMBERSHIP

|
v

OBJECTION -> compulsory "TREATMENT" can PATHOLOGISE DISSENT and become
INDEFINITE

REPLY ----> REHABILITATION MUST REMAIN BOUNDED BY:

[i] PROPORTIONALITY -- never beyond the desert ceiling

```

    [ii] CONSENT WHERE POSSIBLE
    [iii] REVIEW -- no open-ended intervention
    [iv] RIGHTS -- retained throughout
    UNDER THESE FOUR CONDITIONS, REFORM IS IN TUNE WITH DIGNITY.
    WITHOUT THEM, IT IS NOT. <- THE OWNED 2021 STEM IN ONE BOX
RESIDUE --> the HARD CASE: the COMPETENT offender who REFUSES voluntary
    provision and whose DESERT CEILING EXPIRES while RISK REMAINS.
    The bounded theory has nothing further to offer there.
    |
    v
TWO MISREADINGS BLOCKED
"REFORM = LENIENCY" -> false: reform is compatible with RESPONSIBILITY and
    PROPORTIONATE RESTRAINT
"REFORM = THERAPY" -> false: reform ADDRESSES AN AGENT; it does not TREAT A
    PATIENT, and that difference is where dignity is won or lost
CARRY FORWARD PURE INCAPACITATION FAILS NECESSITY once SECURE IMPRISONMENT is
    available -- the hinge of the capital-punishment answer (Panel 21)

ASCII MASTER FLOW - PANEL 11/22: Proportionality -- ordinal, cardinal and juveniles
TWO QUESTIONS THAT ARE NOT THE SAME QUESTION
ORDINAL PROPORTIONALITY -> RANKS penalties by SERIOUSNESS. A RELATIVE
    question. RELIABLY supplied by DESERT INTUITIONS.
CARDINAL PROPORTIONALITY -> asks HOW SEVERE THE ENTIRE SCALE MAY BE. An
    ABSOLUTE question. NOT supplied by desert; needs an ANCHOR FROM OUTSIDE --
    DIGNITY, HUMANE TREATMENT, the PROHIBITION OF DEGRADATION.
    |
    v
THE CONSEQUENCE THAT WINS MARKS -> A SCALE CAN BE PERFECTLY ORDINALLY
    PROPORTIONATE AND STILL BE MONSTROUS. DOUBLE EVERY PENALTY AND THE RANKING
    IS UNTOUCHED. ORDINAL PROPORTIONALITY ALONE PLACES NO CEILING ON ANYTHING.
    |
    v
THE THREE-TERM RELATION (from Panel 4, condition 6)
    PROPORTIONALITY HOLDS BETWEEN *WRONG*, *RESPONSIBILITY* AND *SANCTION* --
    THREE TERMS, NOT TWO. Any inference from GRAVITY OF OFFENCE straight to
    SEVERITY OF SENTENCE is a TWO-TERM INFERENCE and is invalid.
    |
    v
THE OWNED 2023 STEM: "Severity of punishment should be proportionate to the
    seriousness of the crime." Do you agree that while punishing a JUVENILE the
    NATURE OF THE CRIME should be considered?
    THE TRAP: it offers a PRINCIPLE EVERYONE ACCEPTS, then asks whether it
    settles a case IT DOES NOT SETTLE.
    FIVE FACTORS MORAL ASSESSMENT MUST DISTINGUISH
    +---+-----+-----+-----+
    | 1 | SERIOUSNESS OF HARM | OFFENCE-CENTRED |
    | 2 | INTENTION AND UNDERSTANDING | JOINS offence to offender |
    | 3 | DEVELOPMENTAL CAPACITY and | OFFENDER-CENTRED |
    |   | SUSCEPTIBILITY TO INFLUENCE |
    | 4 | PROSPECTS OF REFORM | OFFENDER-CENTRED / FORWARD |
    | 5 | PROCEDURAL RELIABILITY | INSTITUTIONAL -- systematically |
    |   | | WEAKER for young accused |
    +---+-----+-----+-----+

```

|
v

VERDICT SHAPE -> THE NATURE OF THE CRIME IS *RELEVANT BUT NOT CONCLUSIVE*.
 Reduced and developing agency ALTERS CULPABILITY even where harm is GRAVE.
 INTEGRATE the offence-centred and offender-centred perspectives; do NOT
 BALANCE them: capacity is an INPUT INTO CULPABILITY, not a COUNTERWEIGHT.
 ADJUSTING THE SENTENCE IS THEREFORE AN *APPLICATION* OF THE PRINCIPLE.
 OBJECTION -> the reasoning extends to adults shaped by DEPRIVATION, dissolving
 responsibility
 REPLY ----> DEVELOPMENTAL INCOMPLETENESS is UNIVERSAL, TEMPORARY and
 PREDICTABLE; adverse circumstance is PARTICULAR, VARIABLE and
 CONTESTED -> a GENERAL RULE for juveniles, CASE-BY-CASE mitigation
 for adults
 RESIDUE --> supports GRADED rather than THRESHOLD treatment; any AGE LINE is a
 practical compromise the philosophy does not generate
 NOT LICENSED [X] juveniles are never responsible [X] harm is erased

ASCII MASTER FLOW - PANEL 12/22: Hart's three questions and the two-level theory

QUESTION	FORMULATION	FITS WELL	FITS BADLY
Q1 GENERAL JUSTIFY- ING AIM	WHY should the INSTITUTION of punishment exist AT ALL?	FORWARD- LOOKING: prevention, protection, security	PURE RETRIBUTION struggles to explain why the STATE must inflict deserved suffering
Q2 DISTRIB- UTION / LIABIL- ITY	WHOM may we punish, and on what CONDITION?	BACKWARD- LOOKING: only the GUILTY, only for a VOLUNTARY act, only to the extent of CULPABIL- ITY	PURE DETERRENCE permits punishing the INNOCENT where it would deter effectively
Q3 AMOUNT / SEVERITY	HOW MUCH punishment is permissible?	PROPORTION- ALITY: ordinal + cardinal	PURE DETERRENCE permits ESCALATION WITHOUT CEILING

|
v

THE SIX-STEP RECONSTRUCTION

- [1] an institution can be justified by its GENERAL BENEFIT while its
 INDIVIDUAL APPLICATIONS are governed by an INDEPENDENT PRINCIPLE OF
 FAIRNESS
- [2] this is ORDINARY institutional reasoning -- the AIMS of a PROMISE-
 KEEPING PRACTICE differ from the RULES determining who is BOUND BY A
 PARTICULAR PROMISE
- [3] CRIME PREVENTION supplies a plausible AIM for the institution (Q1)

```

[4] DESERT and CULPABILITY supply an indispensable SIDE-CONSTRAINT on
    LIABILITY and SEVERITY (Q2, Q3)
[5] therefore the strongest position is a MIXED or TWO-LEVEL theory --
    CONSEQUENTIALIST IN AIM, RETRIBUTIVIST IN CONSTRAINT
[6] this DISSOLVES the classical dilemma without conceding that either PURE
    theory is adequate
    |
    v
THE PRESUPPOSITION THAT MUST BE STATED the AIM of an institution and the
PRINCIPLES GOVERNING ITS APPLICATION can COME APART WITHOUT INCOHERENCE --
A PURE RETRIBUTIVIST DENIES THIS, so it must be argued, not assumed
    |
    v
THE EXAMINER-FACING PAYOFF -- LOCATE OBJECTIONS, DO NOT MERELY RECITE THEM
"PUNISHING THE INNOCENT" is an objection to DETERRENCE *AT Q2* -- NOT at Q1
"WHY SHOULD THE STATE INFLICT SUFFERING" is an objection to RETRIBUTIVISM
*AT Q1* -- NOT at Q2 or Q3
AN ANSWER TREATING THE TWO THEORIES AS RIVAL ANSWERS TO ONE QUESTION CANNOT
MAKE EITHER POINT.
    |
    v
OBJECTION -> the two levels are UNSTABLE: where punishing within the ceiling
              yields NO preventive benefit, the AIM gives no reason to punish
              while the CONSTRAINT permits it
REPLY ----> the AIM justifies the RULE-GOVERNED PRACTICE, not each
              APPLICATION; a practice making EXCEPTIONS whenever marginal gain
              was absent would NOT BE the practice whose benefit was invoked,
              since its threats would be known to be CONDITIONAL
RESIDUE --> this commits the theory to RULE-LEVEL evaluation and inherits the
              standing difficulty of rule-based consequentialism
HIGHEST-YIELD OPENING IN THE CLAUSE separate Q1/Q2/Q3 in the FIRST THREE
              LINES of any justification stem

ASCII MASTER FLOW - PANEL 13/22: Feinberg -- the expressive differentia
THE PUZZLE a PARKING FINE, a TAX and a LATE-FILING FEE all impose HARD
TREATMENT. So does a FINE ON CONVICTION. What makes the second a PUNISHMENT
and the first three MERE PENALTIES?
    |
    v
NOT SEVERITY -> SOME PENALTIES ARE HEAVIER THAN SOME PUNISHMENTS
NOT THE AUTHORITY -> the same body may impose both
    |
    v
THE DIFFERENTIA IS SYMBOLIC punishment conveys the community's RESENTMENT,
REPROBATION and JUDGMENT OF CONDEMNATION toward the offender for what was
done. NOBODY REGARDS A PARKING FINE AS A STAIN ON CHARACTER.
    |
    v
THE ARGUMENT IN FIVE STEPS
[1] penalties and punishments BOTH impose hard treatment
[2] yet we DISTINGUISH them SHARPLY
[3] the difference CANNOT lie in SEVERITY
[4] it lies in SYMBOLIC SIGNIFICANCE -- authoritative DISAPPROVAL

```

[5] therefore CONDEMNATION IS PART OF THE *CONCEPT* OF PUNISHMENT, NOT AN INCIDENTAL SIDE EFFECT

|
v

FOUR THINGS ONLY THIS ACCOUNT EXPLAINS

[1] WRONGFUL CONVICTION is a distinct and grave wrong EVEN IF COMPENSATED -- THE CONDEMNATION CANNOT BE REFUNDED

[2] the *FORM* of punishment matters: DEGRADING punishments are objectionable INDEPENDENTLY OF SEVERITY

[3] ACQUITTAL is not merely RELEASE but VINDICATION

[4] VICTIMS often want the offence PUBLICLY NAMED rather than only PAID FOR

|
v

OBJECTION -> if CONDEMNATION is the point, SYMBOLIC DENUNCIATION WITHOUT HARD TREATMENT would suffice

REPLY ----> HARD TREATMENT makes the condemnation CREDIBLE and NON-CHEAP, and distinguishes a PUBLIC VERDICT from MERE DISAPPROVAL

RESIDUE --> this makes hard treatment INSTRUMENTAL TO EXPRESSION, which sits uneasily with the claim that it is DESERVED FOR ITS OWN SAKE. STATE THE RESIDUE.

SECOND OBJECTION -> the account grounds punishment in a community's ACTUAL attitudes, which can be MISDIRECTED or MANUFACTURED

REPLY ----> the thesis is CONCEPTUAL (what punishment IS), not JUSTIFICATORY (whether THIS condemnation is warranted). It STRENGTHENS the critique of misdirected condemnation, since an unwarranted conviction inflicts an UNWARRANTED CONDEMNATION -- a DISTINCT injury, not merely an unwarranted hardship.

RESIDUE --> where enforcement is SELECTIVE, the system EXPRESSES that some persons' wrongs are the community's business and others' are not. SELECTIVE ENFORCEMENT BECOMES A *SYMBOLIC* WRONG.

|
v

POSITION ON THE GRID Q1 = authoritative CENSURE | Q2 = only the GUILTY may be condemned; condemning the innocent is a DIFFERENT and grave wrong | Q3 = constrains the FORM more sharply than the QUANTUM -- rules out DEGRADATION directly, leaves SEVERITY to be fixed elsewhere

WHERE IT BITES HARDEST the "PUBLIC AFFIRMATION" argument for CAPITAL PUNISHMENT is an EXPRESSIVE argument -- assess it as one; and the IRREVERSIBILITY objection gets its strongest ground here, since a condemnation cannot be withdrawn from someone no longer alive to be VINDICATED

ASCII MASTER FLOW - PANEL 14/22: Duff -- communication, penance and standing to punish FROM EXPRESSION *ABOUT* THE OFFENDER TO COMMUNICATION *WITH* HIM

AXIS	EXPRESSIVE (Feinberg)	COMMUNICATIVE (Duff)
DIRECTION	ONE-WAY: society EXPRESSES condemnation	TWO-WAY: an ADDRESS that INVITES A RESPONSE
OFFENDER AS	the OBJECT of judgment	a RATIONAL PARTICIPANT capable of ANSWERING
AIM	authoritative DENUNCIATION	REPENTANCE, REFORM, RECONCILIATION

HARD TREATMENT	the VEHICLE of CREDIBLE	a SECULAR PENANCE -- a
IS	condemnation	burden that FOCUSES
		ATTENTION on the wrong
		and gives repentance
		PUBLIC FORM
+-----+-----+-----+		

|
v

THE ARGUMENT IN FIVE STEPS

- [1] citizens OWE ONE ANOTHER AN ACCOUNT of their conduct
- [2] a CRIMINAL TRIAL is a process of CALLING TO ACCOUNT, not merely of FACT-FINDING
- [3] the offender REMAINS A MEMBER, so the response must ADDRESS him rather than merely PROCESS him
- [4] a BURDEN IMPOSED AND UNDERGONE can focus attention on the wrong and give repentance PUBLIC FORM
- [5] therefore punishment is justified as COMMUNICATIVE PENANCE

|
v

THE PRESUPPOSITION -> the political community has the *STANDING* to call THIS offender to account, which requires that it has NOT ITSELF DENIED HIM THE CONDITIONS OF CITIZENSHIP

|
v

THE STANDING ARGUMENT -- THE STRONGEST BRIDGE TO SOCIAL JUSTICE

+-----+-----+	
THE LEGITIMACY OF PUNISHMENT IS *CONDITIONAL ON THE JUSTICE OF THE	
POLITICAL ORDER THAT IMPOSES IT*.	
+-----+-----+	

WHY IT BEATS "POVERTY CAUSES CRIME"

+-----+-----+	
"POVERTY CAUSES CRIME"	THE STANDING ARGUMENT
an EMPIRICAL claim about	a NORMATIVE claim about AUTHORITY
CAUSATION	
REPLY THAT KILLS IT: "many	that reply is IRRELEVANT: the question
poor people do not offend"	is whether THE ACCUSER MAY ACCUSE
if true, it MITIGATES	if true, it CHALLENGES THE STANDING OF
	THE PUNISHER
+-----+-----+	

|
v

SECOND OBJECTION -> aiming at REPENTANCE is ILLIBERAL; the state may regulate CONDUCT but not attempt MORAL CONVERSION

REPLY ----> the communication INVITES rather than COMPELS, and REFUSAL TO REPENT attracts NO FURTHER PENALTY

RESIDUE --> A BURDEN IMPOSED BY FORCE IS A STRANGE INVITATION

THIRD OBJECTION -> standing has NO THRESHOLD, so every order's standing is partly compromised and the condition distinguishes nothing

REPLY ----> STANDING IS GRADED, not binary: the more SEVERELY and SPECIFICALLY a polity has denied a person the conditions of citizenship, the stronger the case for RESTRAINT IN SEVERITY and INSTITUTIONAL REFORM

RESIDUE --> no PROCEDURE is supplied for making that judgement inside a trial, and the VICTIM'S claim to public condemnation does NOT weaken

merely because the state's standing has
LIMIT TO STATE [X] standing does NOT entail that an imperfect state may
punish NOBODY. It grounds RESTRAINT and REFORM, never AMNESTY.

ASCII MASTER FLOW - PANEL 15/22: Foucault -- discipline, panopticism and the compulsory caveat
A GENEALOGY OF PENAL POWER -- *NOT* A THEORY OF JUSTIFICATION
DISCIPLINE AND PUNISH (1975 French; 1977 English translation)

|
v
THE HISTORICAL SHIFT
PUNISHMENT AS PUBLIC SPECTACLE inflicted on the BODY of the condemned
-> PUNISHMENT AS DISCIPLINE: ORDERING, OBSERVATION, TIMETABLING,
TRAINING, NORMALISATION of subjects
USUALLY NARRATED AS: HUMANITARIAN PROGRESS
BUT IT ALSO CHANGED TWO THINGS:
THE TARGET from the BODY to the SOUL, CONDUCT and HABITS
THE TECHNIQUE . from OCCASIONAL TERROR to CONTINUOUS SUPERVISION

|
v
THE NEW TECHNIQUE REQUIRED *KNOWLEDGE* OF THE OFFENDER -> generating
CRIMINOLOGY, PSYCHIATRY and the CASE FILE
-> THEREFORE POWER AND KNOWLEDGE DEVELOP *TOGETHER* rather than
OPPOSING ONE ANOTHER

|
v
PANOPTICISM -- THE MECHANISM
+-----+
| AN ARCHITECTURE OF PERMANENT, *ASYMMETRICAL* VISIBILITY IN WHICH THE |
| OBSERVED CANNOT VERIFY WHETHER THEY ARE BEING WATCHED AT ANY GIVEN |
| MOMENT -- SO SURVEILLANCE IS *INTERNALISED* AND THE SUBJECT |
| DISCIPLINES HERSELF. |
| THE APPARATUS'S POWER LIES IN THE *POSSIBILITY* OF OBSERVATION, NOT |
| ITS ACTUALITY -- WHICH IS WHY IT *ECONOMISES ON FORCE*. |
+-----+
RESULT ON THIS ACCOUNT: "DOCILE BODIES", and DELINQUENCY MANUFACTURED as a
MANAGEABLE CATEGORY rather than CRIME ELIMINATED

|
v
THE FUNCTIONAL CLAIM [?] the prison's persistent FAILURE to reduce
reoffending is NOT AN ANOMALY but FUNCTIONAL, sustaining a bounded,
identifiable delinquent population -- CONTESTED, and STRONGER than the
historical evidence strictly supports. PRESENT AS A THESIS, NOT A FINDING.

|
v
THE COMPULSORY CAVEAT -- STATE IT EXPLICITLY OR LOSE MARKS
[1] [X] Do NOT present him as saying punishment is UNJUSTIFIED. His argument
is about HOW PENAL POWER OPERATES, not about DESERT or LIABILITY. Using
him as a NORMATIVE ALTERNATIVE to retribution or deterrence is a
CATEGORY ERROR and will be marked as one.
[2] [!] The FUNCTIONAL CLAIM is CONTESTED -- a thesis, not a finding.
[3] [X] Do NOT attach panopticism to ANY named contemporary TECHNOLOGY,
DATABASE, PROGRAMME or GOVERNMENT. It is an ANALYTICAL MODEL; NO
empirical claim is made here about ANY surveillance practice ANYWHERE.

|
v
OBJECTION -> if POWER CONSTITUTES SUBJECTS, the resources for CRITICISING
penal power are unavailable; the critique UNDERCUTS ITSELF
REPLY ----> RESISTANCE IS CO-EXTENSIVE WITH POWER, and the aim is to make
CONTINGENT ARRANGEMENTS VISIBLE AS CONTINGENT
RESIDUE --> showing an arrangement is CONTINGENT does NOT show it is BAD;
without a NORMATIVE CRITERION the analysis cannot distinguish what
is worth RESISTING from what is worth KEEPING -> so FOUCAULT MUST
BE PAIRED WITH A NORMATIVE THEORY, NEVER SUBSTITUTED FOR ONE

|
v
PLACEMENT IN AN ANSWER JUSTIFICATORY PARAGRAPH -> NO. CRITICAL PARAGRAPH ->
YES, and he is STRONGEST showing why REFORMATIVE RHETORIC can coexist with
INTENSIFIED CONTROL -- a direct qualification of Panel 10. JUDGE AIMS BY
TECHNIQUES, not only by STATED PURPOSES.

ASCII MASTER FLOW - PANEL 16/22: Restorative justice and Braithwaite's two kinds of shaming
SIX AXES ON WHICH RESTORATIVE PROCESS DIFFERS FROM CONVENTIONAL

AXIS	RETRIBUTIVE/CONVENTIONAL	RESTORATIVE
CRIME IS	a BREACH OF LAW, an offence against the STATE	a HARM TO PERSONS AND RELATIONSHIPS
CENTRAL QUESTION	which law was broken, who did it, what do they DESERVE?	who was HURT, what do they NEED, whose OBLIGATION is it to REPAIR?
VICTIM'S ROLE	a WITNESS for the prosecution	a CENTRAL PARTICIPANT with STANDING
OFFENDER'S ROLE	OBJECT of proceedings; INCENTIVISED TO DENY	ACTIVE PARTICIPANT, expected to ACKNOWLEDGE and REPAIR
OUTCOME	proportionate HARD TREATMENT	reparation, apology, restitution, changed conduct, REINTEGRATION
COMMUNITY	REPRESENTED by the state	DIRECTLY INVOLVED as a STAKEHOLDER

|
v
BRAITHWAITE'S MECHANISM -- SHAME THE ACT, KEEP THE PERSON

STIGMATISING SHAMING condemns THE OFFENDER LABELS THE PERSON as bad SEVERS bonds	REINTEGRATIVE SHAMING condemns THE ACT SUSTAINS RESPECT for the person disapproval WITHIN a CONTINUING RELATIONSHIP OF CARE
offers NO ROUTE BACK	TERMINATED by FORGIVENESS and REACCEPTANCE
pushes toward CRIMINAL SUBCULTURES where the label is worn as IDENTITY => CRIMINOGENIC	returns the offender to the COMMUNITY OF LAW-ABIDING CITIZENS => REGULATORY


```

+-----+
ARGUMENT: informal disapproval regulates MORE POWERFULLY than formal
sanction -> shaming reduces offending ONLY IF the offender is NOT
PERMANENTLY CAST OUT -> stigmatisation SEVERES the bonds that make
disapproval MATTER -> reintegration PRESERVES them and provides a ROUTE BACK
-> therefore restorative processes are justified BOTH by MORAL CHARACTER and
by REGULATORY EFFECT
|
v
PRESUPPOSITION [!] the offender VALUES INCLUSION and the community is WILLING
TO REACCEPT -- conditions that PLAINLY FAIL for members of ALREADY-EXCLUDED
GROUPS. THE THEORY'S MOST SERIOUS LIMITATION. STATE IT.
|
v
POSITION ON THE GRID Q1 = REPAIR of harm and RESTORATION of relationships |
Q2 = liability STILL requires an ADMITTED OR PROVED VOLUNTARY WRONG, so
restoration is NOT a licence to BYPASS GUILT | Q3 = measured by WHAT REPAIR
REQUIRES rather than WHAT DESERT PERMITS -- EXACTLY where the PROPORTIONALITY
objection BITES
|
v
THREE OBJECTIONS, THREE REPLIES
PROPORTIONALITY -> outcomes vary with the VICTIM'S TEMPERAMENT; like cases
are not treated alike | REPLY: defensible schemes operate INSIDE UPPER AND
LOWER LIMITS SET BY DESERT -- which CONCEDES that the retributive
framework remains the OUTER CONSTRAINT
POWER IMBALANCE -> face-to-face process can RE-TRAUMATISE or COERCE where
parties are UNEQUAL | REPLY: the STRONGEST objection, and it CANNOT BE
FULLY ANSWERED -> restorative process is CONDITIONALLY APPROPRIATE:
genuine VOLUNTARINESS, prior SAFETY, skilled FACILITATION, SCREENING OUT
of entrenched domination. [X] NOT universally applicable.
PUBLIC WRONG -> if crime is only PRIVATE HARM, DENUNCIATION disappears |
REPLY: FEINBERG and DUFF -- some wrongs must be PUBLICLY NAMED, so
restoration must SUPPLEMENT rather than REPLACE authoritative condemnation
|
v
THE LAYERED VERDICT -- THE BEST CLOSING AVAILABLE IN THE CLAUSE
DESERT fixes the LIMITS | CONDEMNATION supplies the MEANING | COMMUNICATION
supplies the ADDRESS to the offender | RESTORATION supplies the REPAIR of
harm | FOUCAULT supplies the standing WARNING that ANY of these can be
CAPTURED BY AN APPARATUS OF CONTROL
DISTRIBUTIONAL RESIDUE restorative justice is STRONGEST where social bonds
are INTACT and WEAKEST where they have been DESTROYED -- so it is LEAST
AVAILABLE to those whom conventional process treats WORST

ASCII MASTER FLOW - PANEL 17/22: Corruption I -- entrusted power and the five wrongs
DEFINITION
+-----+
| CORRUPTION = THE MISUSE OF *ENTRUSTED* PUBLIC OR INSTITUTIONAL POWER |
| THROUGH PARTIAL, CONCEALED OR IMPROPERLY EXCHANGED ADVANTAGE, |
| SUBVERTING THE NORM THAT OFFICE SHOULD SERVE ITS JUSTIFIED PURPOSE. |
+-----+
WIDER THAN BRIBERY -> BRIBERY (improper exchange) | FAVOURITISM (partial

```

allocation) | NEPOTISM (partiality by kinship) | EMBEZZLEMENT (conversion of entrusted resources) | REGULATORY CAPTURE (the regulated set the rules) | ABUSE OF DISCRETION (lawful power for unjustified ends)
[X] An answer that treats corruption as BRIBERY has already NARROWED THE QUESTION -- several owned stems turn on CAPTURE, DISCRETION and PATRONAGE.

|
v

FIVE REASONS IT IS WRONG -- FIVE *DIFFERENT* WRONGS

- [1] BREACH OF TRUST office creates FIDUCIARY OBLIGATIONS
 - [2] IMPARTIALITY VIOLATION similarly placed persons receive UNEQUAL TREATMENT
 - [3] RULE-OF-LAW INJURY ... PUBLIC RULES are DISPLACED BY PRIVATE ACCESS
 - [4] AGENCY HARM citizens become CLIENTS or SUPPLICANTS rather than EQUALS
 - [5] INSTITUTIONAL HARM ... repeated corruption CHANGES EXPECTATIONS, making [analysis] HONEST ACTION COSTLY and collective trust FRAGILE
- WHY FIVE AND NOT ONE -> EACH SURVIVES THE FAILURE OF THE OTHERS. Even where NO ONE IS MEASURABLY WORSE OFF, [1] and [3] STILL HOLD -> which is how corruption passes the PUBLIC-WRONG FILTER (Panel 2) WITHOUT an identifiable injured party.

|
v

THE OWNED 2025 STEM: "Corrupt practices reveal an INHERENT TENSION between PARTICULARISTIC and UNIVERSALISTIC normative standards."

+-----+-----+	
PARTICULARISTIC NORMS	UNIVERSALISTIC NORMS
assign SPECIAL WEIGHT to	require OFFICE-HOLDERS to apply PUBLIC
FAMILY, CASTE, FRIENDSHIP,	CRITERIA IMPARTIALLY
PATRONAGE	
generate GENUINE DUTIES	generate duties owed to ALL who stand in
-- NOT mere bias	the same relation to the office
+-----+-----+	

THE FOUR-STEP ARGUMENT

- [1] personal relations generate GENUINE DUTIES
- [2] public office is ENTRUSTED FOR A SPECIFIED COMMON PURPOSE
- [3] using office to discharge PRIVATE LOYALTY imposes costs on UNREPRESENTED CITIZENS
- [4] CORRUPTION OCCURS WHEN A *LEGITIMATE* PARTICULAR LOYALTY IS ACTED UPON IN A ROLE GOVERNED BY *UNIVERSAL PUBLIC STANDARDS*

|
v

THE REMEDY [X] NOT the abolition of personal loyalty -> [OK] DEFINE ROLE BOUNDARIES, CONFLICTS OF INTEREST and RECUSAL

THE CHARACTERISATION THAT EARNS THE VERDICT MARK the tension is between *DOMAINS*, not between two RIVAL MORALITIES. Both norms are VALID IN THEIR OWN DOMAIN. CORRUPTION IS A *CATEGORY ERROR OF ROLE, EXECUTED FOR ADVANTAGE*. That is why the tension is INHERENT rather than resolvable. ARISTOTLE, BOUNDED friendship and particular bonds MATTER and CANNOT convert public office into private property -> the task is ROLE-DIFFERENTIATION. ONE controlled point; [X] do NOT import a general theory of friendship. LIMIT boundaries work cleanly for DISCRETE DECISIONS and less cleanly for PERVASIVE INFLUENCE, INFORMAL NETWORKS and AGENDA-SHAPING, where no identifiable decision is diverted and RECUSAL HAS NOTHING TO ATTACH TO

ASCII MASTER FLOW - PANEL 18/22: Corruption II -- diagnosis, regimes and remedies
 THE OWNED 2022 STEM: SYSTEMIC ISSUE OR ETHICAL ISSUE?

+-----+	
ETHICAL DIAGNOSIS	SYSTEMIC DIAGNOSIS
CAUSE: greed, dishonesty,	CAUSE: OPACITY, MONOPOLY, EXCESSIVE
weak integrity	DISCRETION, IMPUNITY
FOCUS: CHARACTER, CHOICE	FOCUS: INCENTIVES, INSTITUTIONAL
	EQUILIBRIUM
REMEDY: MORAL EDUCATION,	REMEDY: TRANSPARENCY, AUDIT, COMPETITION,
PROFESSIONAL ETHOS	ACCOUNTABILITY
+-----+	

BEST POSITION -> CORRUPTION IS AN *ETHICAL ACT WITHIN A SYSTEMIC ECOLOGY*.
 Structure influences OPPORTUNITY and COST but does NOT ERASE AGENCY;
 character matters, but HEROIC VIRTUE CANNOT SUBSTITUTE FOR SOUND
 INSTITUTIONS.

[!] THE MARK IS FOR THE *REASON* THE DISJUNCTION FAILS, NOT FOR SAYING
 "BOTH". THE TWO EXPLANATORY RESIDUES:

PURE ETHICS cannot explain VARIATION ACROSS INSTITUTIONS with comparable
 populations

PURE STRUCTURE cannot explain VARIATION ACROSS INDIVIDUALS in IDENTICAL
 positions under IDENTICAL incentives

PRIORITY -> STRUCTURE FIRST (it fixes the opportunity set), ETHOS WHERE
 STRUCTURE CANNOT REACH

REGRESS -> auditors, investigators and rule-designers are THEMSELVES
 office-holders; design DISTRIBUTES and CHECKS discretion but cannot remove
 the FINAL LAYER OF JUDGMENT

|
 v

THE OWNED 2020 STEM: HOW FAR DO REGIMES CONDITION CORRUPT PRACTICE?

NO FORM OF GOVERNMENT IS AUTOMATICALLY IMMUNE

AUTOCRACY -> may CONCEAL corruption through WEAK SCRUTINY

DEMOCRACY -> may EXPOSE it, yet ALSO GENERATE PATRONAGE, CAMPAIGN-FINANCE
 and CAPTURE risks

REGIME TYPE AFFECTS -> INFORMATION | ACCOUNTABILITY | COMPETITION

OUTCOMES ALSO DEPEND ON -> INSTITUTIONAL DESIGN | SOCIAL INEQUALITY | NORMS
 OF OFFICE

THE PRECISE ANSWER TO "HOW FAR" -> regimes condition the VISIBILITY, the
 COST and the FORM of corruption FAR MORE THAN ITS EXISTENCE

[!] THE STANDARD ERROR -> CONFUSING *DISCLOSURE* WITH *INCIDENCE*. A regime
 that EXPOSES more corruption is NOT thereby MORE CORRUPT.

|
 v

THE OWNED 2019 STEM: IS CORRUPTION *NOT* A FORM OF MASS VIOLENCE?

STEP 1 -> STATE THE NECESSARY CONDITIONS FOR *VIOLENCE* FIRST. TEST, DO NOT
 ASSERT.

STEP 2 -> TEST CORRUPTION AGAINST EACH

+-----+		
CONDITION OF VIOLENCE	MEETS?	NOTE
large-scale harm to persons	OFTEN YES	via DIVERSION of essential
		resources
DIRECT PHYSICAL FORCE	NO	THE CORE DISANALOGY
INTENT TO HARM THE VICTIMS	USUALLY NO	intent is to GAIN, not to
		INJURE

IDENTIFIABLE VICTIMS	NO	DIFFUSE; causal chains	
ABUSE OF INSTITUTIONAL	YES	INVISIBLE	
POWER		the SHARED FEATURE	
+-----+	+-----+	+-----+	+-----+

STEP 3 -> VERDICT: CALL CORRUPTION "MASS VIOLENCE" ONLY *ANALOGICALLY* AND WITH A DEMONSTRATED, FORESEEABLE HARM-CHAIN; OTHERWISE USE *STRUCTURAL HARM*. FOR: diffuse victims, cumulative harm, invisible causal chains, abuse of institutional power. AGAINST: CONCEPTUAL INFLATION erases the distinctive AGENCY and INTENT of PHYSICAL mass violence -- and a concept covering everything DISCRIMINATES NOTHING.

|
v

THE OWNED 2018 STEM: MEASURES TO ERADICATE CORRUPTION

[X] THE TRAP: the stem invites a LIST. [OK] GIVE THE PRINCIPLE THAT GENERATES THE LIST -> ATTACK THE THREE VARIABLES THAT MAKE OFFICE MISUSABLE

[A] MONOPOLY ... COMPETITION, PLURAL PROVIDERS, EFFECTIVE APPEAL

[B] DISCRETION . RULES, PUBLISHED CRITERIA, RECORDED REASONS, DEFINED CONFLICTS OF INTEREST, MANDATORY RECUSAL

[C] IMPUNITY ... TRANSPARENCY, INDEPENDENT AUDIT, INDEPENDENT INVESTIGATION, CERTAINTY OF DETECTION

[D] ETHOS PROFESSIONAL ETHOS and MORAL EDUCATION for the RESIDUE OF JUDGMENT that no rule eliminates

BECCARIA TRANSFERS EXACTLY HERE -> corruption is the paradigm CALCULATED offence by an actor WITH SOMETHING TO LOSE, so CERTAINTY OF DETECTION is the OPERATIVE LEVER, not SEVERITY OF PENALTY

INDIAN INSTITUTIONAL ILLUSTRATIONS -- CLASSIFY BEFORE USE

PREVENTION OF CORRUPTION ACT, 1988 (amended 2018) = ENACTED CRIMINAL-LAW FRAMEWORK

LOKPAL AND LOKAYUKTAS ACT, 2013 = INSTITUTIONAL ACCOUNTABILITY FRAMEWORK

[!] NEITHER ENACTMENT PROVES THAT CORRUPTION IS ETHICALLY SOLVED.

IMPLEMENTATION, INDEPENDENCE, ENFORCEMENT and PUBLIC NORMS remain SEPARATE QUESTIONS.

LIMIT where corruption is concentrated at the level that DESIGNS AND ENFORCES the rules, there is NO EXTERNAL ARCHITECT and the systemic remedy has NO PURCHASE -- the analysis reaches its limit where the CORRUPT and the REFORMER ARE THE SAME OFFICE

ASCII MASTER FLOW - PANEL 19/22: Mass violence -- mechanisms and responsibility
DEFINITION MASS VIOLENCE = LARGE-SCALE VIOLENCE AGAINST POPULATIONS produced through ORGANISED COERCION, COLLECTIVE MOBILISATION or CASCADING PARTICIPATION. It INCLUDES, but is WIDER THAN, GENOCIDE.

|
v

SIX MECHANISMS BY WHICH ORDINARY PEOPLE PARTICIPATE

[1] DEHUMANISATION victims represented as CONTAMINANTS, THREATS or NON-PERSONS

[2] MORAL EXCLUSION ordinary restraints WITHDRAWN from an OUT-GROUP

[3] DIFFUSION OF RESPONSIBILITY each participant treats agency as FRAGMENTED

[4] OBEDIENCE AND BUREAUCRACY harmful acts ROUTINISED as ROLE-PERFORMANCE

[5] POLARISATION AND AMBIGUITY and DISSENT SUPPRESSED

PROPAGANDA

[6] SECURITY DILEMMA [?] ... groups interpret PRE-EMPTION as NECESSARY

SELF-DEFENCE

WHAT THE LIST IMPLIES -> MASS VIOLENCE DOES NOT REQUIRE EXCEPTIONAL PERSONS.

It requires REPRESENTATION, PERMISSION, FRAGMENTATION, ROUTINE, SILENCE and FEAR.

|

v

ARENDT -- *EICHMANN IN JERUSALEM*

the "BANALITY OF EVIL": EXTRAORDINARY WRONGDOING can be performed through

CLICHES, CAREERISM and FAILURE OF JUDGMENT rather than DEMONIC DEPTH

PRESUPPOSITION -> moral responsibility requires REFLECTIVE JUDGMENT, not

merely CONFORMITY TO ROLE

OBJECTION -> "banality" may UNDERSTATE ideology, hatred, initiative

REPLY ----> Arendt does NOT DENY THE ENORMITY; she warns that ORDINARY

INSTITUTIONAL OBEDIENCE can become ITS VEHICLE

[!] CRITICAL CONTROL -> BANALITY CONCERNS THE *PSYCHOLOGY OF PERPETRATION*,

NOT THE *DEGREE OF GUILT*. SAY SO, OR IT WILL BE READ AS AN EXCUSE.

|

v

THREE POSITIONS ON RESPONSIBILITY

ONLY INDIVIDUALS -> preserves personal culpability | IGNORES institutions
and COMMAND STRUCTURES

GROUPS COLLECTIVELY -> captures organised agency and inherited benefit |

PUNISHES PERSONS MERELY BY MEMBERSHIP

DIFFERENTIATED -> assigns liability by ROLE, KNOWLEDGE, CAPACITY,

CONTRIBUTION | FACTUALLY DEMANDING <- THE STRONGEST VIEW

LEADERS, PLANNERS, DIRECT PERPETRATORS, ENABLERS, BYSTANDERS and RESISTERS

DO NOT BEAR IDENTICAL RESPONSIBILITY.

|

v

THE FIVE KINDS OF COLLECTIVE RESPONSIBILITY -- THE DECISIVE GRID

KIND	CLAIM	DEFENS- IBLE?	ATTACHES TO
CRIMINAL GUILT	this person PLANNED, ORDERED, INCITED, COMMITTED	YES -- paradigm	INDIVIDUALS ONLY
ORGANISATIONAL LIABILITY	a body with DECISION PROCEDURES and a CHAIN OF COMMAND answers for what it DECIDED	YES, where it has GENUINE AGENCY	INSTITUTIONS COMMANDS, PARTIES
POLITICAL RESPONSIBILITY	members bear responsibility for what is done IN THEIR NAME and by THEIR INSTITUTIONS	PARTLY: grounds REPARA- TION, MEMORY, REFORM NOT GUILT	CITIZENS COLLECT- IVELY
RESPONSIBILITY FOR OMISSION	BYSTANDERS who could have acted at ACCEPTABLE COST and did not	YES, GRADED by	INDIVIDUALS by role and situation

METAPHYSICAL / INHERITED GUILT	guilty because of ANCESTRY or MEMBERSHIP	knowledge	REJECTED
		capacity	
		risk	
		NO --	
		THE VERY	
		LOGIC	
		THAT	
		GENERATES	
		ATROCITY	

THE CONTROLLING RULE -> GUILT IS INDIVIDUAL; *RESPONSIBILITY* ADMITS OF COLLECTIVE FORMS. POLITICAL RESPONSIBILITY GROUNDS OBLIGATIONS TO REPAIR, REMEMBER AND REFORM; IT NEVER CONVERTS INTO CRIMINAL GUILT BY MEMBERSHIP. AN ANSWER THAT ASSIGNS GUILT TO A COMMUNITY *AS SUCH* HAS REPRODUCED THE PERPETRATOR'S OWN REASONING.
 RESIDUE [?] -> political responsibility is WEAKEST for citizens who had NO EFFECTIVE VOICE, on whom it may fall MOST HEAVILY though they were LEAST ABLE TO PREVENT the wrong

|
v

RELIGIOUSLY FRAMED VIOLENCE -- THREE DISTINCTIONS

- [1] DOCTRINE vs MOBILISATION -> a tradition's TEXTS and a movement's POLITICAL USE of them are NOT THE SAME OBJECT. Explanation requires ORGANISATION, INCENTIVE, LEADERSHIP, IMPUNITY, PRIOR GRIEVANCE -- not only theology. [X] do not DERIVE violence from a religion; [X] do not EXONERATE a movement by pointing to a peaceful text
- [2] COMMUNAL VIOLENCE vs POGRROM vs GENOCIDE -> differ in STRUCTURE, not merely SCALE: RECIPROCAL communal conflict | ONE-SIDED attack with OFFICIAL ACQUIESCENCE | destruction of a group AS SUCH with SPECIFIC INTENT. Three categories, three EVIDENTIARY REQUIREMENTS.
- [3] IDENTITY AS TARGET vs IDENTITY AS MOTIVE -> victims may be SELECTED by religious identity for INSTRUMENTAL POLITICAL reasons (land, votes, markets, labour). That the MARKER is religious does NOT establish that the MOTIVE is -- and the REMEDY differs: THEOLOGICAL ENGAGEMENT for one, ACCOUNTABILITY FOR ORGANISATION AND IMPUNITY for the other.

[X] ANSWER DISCIPLINE -> NO community, country, party, government, movement or historical episode is named as an instance of ANY of these categories.
 ANSWER AT THE LEVEL OF *CRITERIA*.

|
v

PREVENTION -- INSTITUTIONS THAT PRESERVE PERSONHOOD

INDEPENDENT INFORMATION | PROTECTION OF DISSENT | UNIVERSAL CIVIC STATUS |
 ACCOUNTABILITY FOR COMMAND | REFUSAL OF DEHUMANISING CATEGORIES
 [!] Education and memory matter, but MORAL EXHORTATION WITHOUT INSTITUTIONAL CHECKS IS INADEQUATE.

ASCII MASTER FLOW - PANEL 20/22: Genocide -- Lemkin, the Convention, and the group as such
 HOW THE CONCEPT WAS CONSTRUCTED

1944 LEMKIN, *AXIS RULE IN OCCUPIED EUROPE* [SCHOLARLY WORK]
 coins GENOCIDE from Greek *genos* (race, tribe) + Latin *-cide* (killing)
 LEMKIN'S CONCEPTION -> a COORDINATED PLAN OF DIFFERENT ACTIONS aiming at the DESTRUCTION OF THE ESSENTIAL FOUNDATIONS OF THE LIFE OF A

GROUP, with the aim of ANNIHILATING THE GROUP ITSELF. TARGETS INCLUDE political and social institutions, culture, language, national feeling, religion, economic existence, personal security, liberty, health and dignity -- KILLING BEING ONE METHOD AMONG SEVERAL.

v

1948 GENOCIDE CONVENTION [INTERNATIONAL INSTRUMENT]
SPECIFIED ACTS + INTENT TO DESTROY, IN WHOLE OR IN PART, A NATIONAL, ETHNICAL, RACIAL or RELIGIOUS GROUP, *AS SUCH*

v

1951 ENTERS INTO FORCE [ADOPTION and ENTRY INTO FORCE are DIFFERENT EVENTS -- do not conflate them]

|

v

THE PRECISION THE EXAMINER REWARDS

```
+-----+
| THE CONVENTION IS *NARROWER* THAN LEMKIN'S CONCEPTION. |
| [X] Do NOT assert that the Convention adopts Lemkin's conception IN |
| FULL -- the single commonest factual error on this material. |
| [X] POLITICAL GROUPS ARE *NOT* AMONG THE PROTECTED CATEGORIES. |
| [X] Do NOT extend the protected categories beyond the FOUR NAMED. |
+-----+
```

|

v

LEMKIN'S ARGUMENT IN SIX STEPS

- [1] existing legal categories addressed wrongs done to INDIVIDUALS
- [2] but some wrongs are directed at a person *BECAUSE OF* MEMBERSHIP, and aim at the GROUP'S CONTINUED EXISTENCE AS SUCH
- [3] a group's existence is sustained not only by the LIVES of its members but by its INSTITUTIONS, LANGUAGE, TRANSMISSION and SHARED LIFE
- [4] destroying those FOUNDATIONS destroys the GROUP even where MANY INDIVIDUALS SURVIVE
- [5] therefore a DISTINCT CATEGORY is required, whose defining element is the *INTENT TO DESTROY THE GROUP AS SUCH*
- [6] the wrong is IRREDUCIBLE to the AGGREGATE of the individual murders that may compose it

PRESUPPOSITION [!] -> groups have a MORALLY SIGNIFICANT EXISTENCE not EXHAUSTED by the aggregate of their members' interests. MUST BE ARGUED -- INDIVIDUALIST moral theories DENY it and would locate the entire wrong in the murders.

|

v

FOUR NEIGHBOURING CONCEPTS -- DISTINGUISHED BY FEATURE, NOT SCALE

```
+-----+
| MASS VIOLENCE          | SCALE and COLLECTIVE PATTERN; NO single |
|                        | fixed legal INTENT requirement |
| GENOCIDE                | SPECIAL INTENT to DESTROY A PROTECTED |
|                        | GROUP, wholly or partly |
| CRIMES AGAINST HUMANITY | specified acts as part of a WIDESPREAD or |
|                        | SYSTEMATIC ATTACK against a CIVILIAN |
|                        | POPULATION |
| WAR CRIME               | serious violation CONNECTED TO ARMED |
|                        | CONFLICT |
+-----+
```

UPSC TEST -> *NOT EVERY MASSACRE IS LEGALLY GENOCIDE.* THE SPECIFIC

DESTRUCTIVE INTENT MATTERS.

|
v

WHY GENOCIDE IS A DISTINCTIVE MORAL WRONG -- FOUR REASONS

- [1] victims are attacked NOT ONLY AS INDIVIDUALS but AS MEMBERS of a group MARKED FOR DESTRUCTION
- [2] CULTURAL and GENERATIONAL CONTINUITY is targeted
- [3] the perpetrator CLAIMS POWER TO DECIDE WHICH HUMAN PLURALITY MAY EXIST
- [4] INDIVIDUAL KILLING and COLLECTIVE ANNIHILATORY PURPOSE ARE JOINED

|
v

THREE OBJECTIONS, THREE REPLIES

REDUNDANCY -> "if the killings are already the gravest crimes, 'genocide' adds a LABEL" | REPLY: the ADDITIONAL wrong is the destruction of a *FORM OF SHARED LIFE* -- a language, a tradition of transmission, a community of memory -- a loss to SURVIVORS, to THOSE NEVER BORN INTO IT, and arguably to HUMANITY, NOT captured by counting murders

PROOF -> "SPECIFIC INTENT makes it nearly impossible to prove, so the concept PROTECTS PERPETRATORS" | REPLY: a REAL evidentiary problem, met by INFERRING INTENT FROM A PATTERN OF CONDUCT -- but a LIMIT to be STATED honestly, and it explains why CRIMES AGAINST HUMANITY often does the PRACTICAL WORK

PROTECTED-GROUP LIMITATION -> the Convention omits POLITICAL and many SOCIAL groups | REPLY: that is a limitation of the LEGAL DEFINITION; broader MORAL CONDEMNATION runs through CRIMES AGAINST HUMANITY WITHOUT CASUALLY REWRITING THE TREATY TERM

|
v

RESPONSIBILITY, OBEDIENCE AND DENIAL

"FOLLOWING ORDERS" does NOT erase agency where an order is MANIFESTLY CRIMINAL. COMMAND RESPONSIBILITY, BUREAUCRATIC CONTRIBUTION and PROPAGANDA raise DIFFERENT EVIDENTIARY and MORAL questions, but ROLE NEVER AUTOMATICALLY CANCELS JUDGMENT.

DENIAL continues the wrong by attacking MEMORY, TESTIMONY and the STANDING OF SURVIVORS -- yet LEGAL GUILT MUST REMAIN INDIVIDUALISED rather than INHERITED by later members of a population.

[X] ANSWER DISCIPLINE name NO country, community, government or episode. Cite the 1948 Convention as a DATED INTERNATIONAL INSTRUMENT and Lemkin's 1944 work as a DATED SCHOLARLY SOURCE; argue the PHILOSOPHY SEPARATELY.

ASCII MASTER FLOW - PANEL 21/22: Capital punishment -- argument tree and custody test
DEFINITION the state's INTENTIONAL EXECUTION of a CONVICTED offender. THE HARDEST CASE because punishment becomes IRREVERSIBLE and ELIMINATES THE SUBJECT whose RESPONSIBILITY, REFORM and RIGHTS GROUND PENAL THEORY.

|
v

THE ARGUMENT TREE

+-----+-----+	
FOR	AGAINST
+-----+-----+	
[1] RETRIBUTION [OK] --	[1] FALLIBILITY AND IRREVERSIBILITY
exceptionally grave culpable	[OK] -- WRONGFUL EXECUTION CANNOT
killing may DESERVE the	BE REPAIRED

gravest proportionate response	
[2] DETERRENCE [?] -- may	[2] HUMAN DIGNITY [OK] -- the state
deter BEYOND LIFE IMPRISON-	CONTRADICTS ITS OWN CONDEMNATION OF
MENT; an EMPIRICAL claim that	KILLING by deliberately
CANNOT BE ASSUMED	extinguishing a RESTRAINED person
[3] INCAPACITATION [OK] --	[3] DETERRENCE UNCERTAINTY [?] --
permanently prevents	comparative claims are EMPIRICALLY
reoffending, THOUGH SECURE	CONTESTED; the argument MUST STATE
IMPRISONMENT ALSO	the uncertainty
INCAPACITATES	
[4] PUBLIC AFFIRMATION [!] --	[4] UNEQUAL ADMINISTRATION [OK] --
may EXPRESS the equal value of	unequal defence, bias and discretion
victims; an EXPRESSIVE	UNDERMINE PROPORTIONALITY
argument -- ASSESS IT AS ONE	[5] FORECLOSURE OF REFORM [OK]
	[6] CRUELTY AND DEATH-ROW PROCESS
	[!] -- prolonged uncertainty can ADD
	SUFFERING BEYOND the formal sentence
+-----+	+-----+

|
v

THE OWNED 2025 STEM: CAN THE RIGHT TO LIFE BE ABSOLUTE? -- FOUR MOVES IN ORDER

- [1] THE RIGHT TO LIFE IS NOT TREATED AS ABSOLUTE *EVEN BY ITS DEFENDERS*:
 SELF-DEFENCE and NECESSITY are accepted limits. A right can be
 FUNDAMENTAL WITHOUT BEING EXCEPTIONLESS. [X] asserting absoluteness
 chooses the WEAKEST premise and is refuted by one counter-example.

v

- [2] SO THE QUESTION IS WHETHER *CUSTODIAL* KILLING MEETS THE SAME CONDITIONS

+-----+	+-----+
IMMEDIATE DEFENCE	EXECUTION
responds to a PRESENT	FOLLOWS CUSTODY and ADJUDICATION
UNJUST THREAT	
NO ALTERNATIVE available	LESS FINAL MEANS of INCAPACITATION
in time	ARE AVAILABLE
NECESSITY SATISFIED	NECESSITY *NOT* SATISFIED
+-----+	+-----+

=> LIMITS ON THE RIGHT TO LIFE IN DEFENCE DO *NOT* AUTOMATICALLY JUSTIFY
 CAPITAL PUNISHMENT

v

- [3] THEN DESERT and DETERRENCE, EACH ON ITS OWN QUESTION (Q1/Q2/Q3), NOT AS
 A HEAP

v

- [4] THEN FALLIBILITY, UNEQUAL ADMINISTRATION, FORECLOSURE OF REFORM -> AND
 THE CONDITION-SPECIFYING VERDICT

+-----+	+-----+
THE STRONGEST ABOLITIONIST CONCLUSION IS *NOT* "ALL RIGHTS ARE	
ABSOLUTE" BUT: *DELIBERATE IRREVERSIBLE KILLING AFTER CONTROL IS	
ESTABLISHED FAILS NECESSITY UNDER CONDITIONS OF FALLIBILITY AND	
ALTERNATIVE PROTECTION.*	
+-----+	+-----+

|
v

THE KANTIAN TENSION KANTIAN RETRIBUTIVISM supports punishment ACCORDING TO
 DESERT and famously treats MURDER as demanding DEATH -- YET the wider
 KANTIAN COMMITMENT to PERSONS AS ENDS INTENSIFIES concern about PROCEDURAL

CERTAINTY and INSTRUMENTAL DETERRENCE.

[!] A KANTIAN ABOLITIONIST CANNOT SIMPLY CITE DIGNITY. The argument must show WHY EQUAL RESPECT FORBIDS EXECUTION EVEN WHERE GUILT AND DESERT ARE ESTABLISHED -> the available route is the IRREVERSIBILITY + FALLIBILITY + UNEQUAL-ADMINISTRATION chain, which attacks the CONDITIONS OF DESERT-TRACKING rather than desert itself.

|
v

THE OWNED 2019 STEM: DOES IT WEAKEN SOCIAL JUSTICE? -- THREE VARIABLES
PROPORTIONALITY -> seriousness is NECESSARY but NOT SUFFICIENT; culpability, mitigation, consistency and ALTERNATIVES matter
SOCIAL JUSTICE -> a penalty administered THROUGH UNEQUAL SOCIAL CONDITIONS can MAGNIFY INJUSTICE even where its ABSTRACT RULE IS NEUTRAL (condition 7, Panel 4)
DETERRENCE -> SEPARATE empirical EFFECTIVENESS from moral PERMISSIBILITY: an EFFECTIVE deterrent may still VIOLATE RIGHTS; an INEFFECTIVE one LOSES its utilitarian basis
+ DUFF'S STANDING ARGUMENT (Panel 14) is the sharpest link available

|
v

INDIAN LEGAL ILLUSTRATIONS -- CLASSIFY BEFORE USE
BACHAN SINGH v. STATE OF PUNJAB (1980) = SUPREME COURT *JUDGMENT*;
retained capital punishment while formulating the "RAREST OF RARE" limitation. [X] NOT LEGISLATION.
LAW COMMISSION OF INDIA, REPORT NO. 262, *THE DEATH PENALTY* (2015) = OFFICIAL *ADVISORY REPORT*;
recommended ABOLITION FOR ORDINARY CRIMES while EXCLUDING specified TERRORISM-RELATED and WAR contexts from that recommendation. [X] IT RECOMMENDS; IT DOES NOT ENACT.
[!] THESE ILLUSTRATE INDIA'S LEGAL COMPROMISE. THEY DO NOT SETTLE THE MORAL DEBATE OR ESTABLISH DETERRENT EFFECT.
OBJECTION -> "necessity is the WRONG TEST: no punishment is 'necessary' once the offender is in custody, so the argument would abolish IMPRISONMENT too"
REPLY ----> NECESSITY GOVERNS ONLY *PROTECTIVE* RATIONALES. Where the defence is INCAPACITATION or PUBLIC SAFETY, necessity applies and SECURE IMPRISONMENT satisfies it at LOWER COST. Where the defence is DESERT ALONE, the argument shifts to the SECOND CHAIN -- FALLIBILITY, IRREVERSIBILITY, UNEQUAL ADMINISTRATION.
RESIDUE --> a PURE DESERT RETENTIONIST who concedes non-necessity and claims SUFFICIENT PROCESS RELIABILITY has been CONTRADICTED on a question of INSTITUTIONAL FACT, not REFUTED. Philosophy FRAMES that debate; it does not SETTLE it.

ASCII MASTER FLOW - PANEL 22/22: The integrated answer spine, the evidence bank and the ledger
DIRECTIVE DECODER -- THE VERB FIXES THE STRUCTURE

+-----+-----+-----+-----+			
DIRECTIVE	COMPULSORY STRUCTURAL MOVE	FAILURE MODE	
+-----+-----+-----+-----+			
EXPLAIN/ELUCIDATE	statement -> premises ->	MORALISING instead of	
	key distinction -> example	EXPOUNDING	
DISCUSS	theory -> rival ->	LISTING the theory	
	objection -> reply ->	catalogue with NO	
	verdict	ADJUDICATION	

CRITICALLY EXAMINE / EVALUATE	TWO objections, each with REPLY and RESIDUAL PROBLEM	EMOTIVE denunciation of crime or penalty
IS X JUSTIFIED?	Q1 aim -> Q2 liability -> Q3 amount -> verdict	ONE answer offered to THREE questions
SHOULD X BE ABOLISHED/RETAINED?	NAME THE TEST (desert, deterrence, dignity, fallibility, equality) -> apply -> verdict	asserting a position then listing both sides
IS X A FORM OF Y?	define Y's NECESSARY CONDITIONS -> test X -> verdict INCLUDING partial fit	ANALOGY ASSERTED WITHOUT A TEST
DO YOU AGREE THAT..	COMMITMENT is compulsory and must be QUALIFIED	a SURVEY with NO POSITION TAKEN

↓
v

THE THREE ANSWER METHODS

- 10 MARKS (~150 words, 4 moves, ~12 min) -> PRECISE CONCEPT in technical vocabulary -> ARGUMENT as numbered premises + the ONE distinction the stem turns on -> ONE EVIDENCE UNIT with its LIMITATION -> GRADED VERDICT stating the CONTROLLING PRINCIPLE. [X] do NOT run the theory catalogue.
- 15 MARKS (~220 words, 6 moves, ~18 min) -> identify the PENAL PURPOSE or INSTITUTIONAL WRONG at issue -> the relevant THEORY with its PRESUPPOSITION -> the STRONGEST RIVAL on the SAME question -> ONE TABLE (the three questions | retributive vs restorative | the five kinds | expressive vs communicative) -> ONE fully worked OBJECTION -> REPLY -> RESIDUAL PROBLEM -> VERDICT separating PHILOSOPHICAL VALIDITY from IMPLEMENTATION and from EMPIRICAL EFFECT
- 20 MARKS (~300 words, 8 moves, ~25 min) -> state WHAT MAKES THE CASE DIFFICULT (desert vs consequence vs dignity) -> SEPARATE Q1/Q2/Q3 -> the competing theories in their STRONGEST form -> rights, dignity, culpability, proportionality APPLIED -> TWO objection->reply chains, one using FALLIBILITY, DIFFERENTIATED RESPONSIBILITY or STANDING -> the CRITICAL QUALIFICATION (Foucault with its caveat, or Duff's standing) in the CRITICAL paragraph -> ONE PRECISELY CLASSIFIED Indian legal illustration -> GRADED VERDICT naming the CONDITIONS under which it holds

↓
v

SELECTABLE EVIDENCE BANK -- 1 UNIT AT 10 MARKS, 2 AT 15, 4-5 AT 20

- C1 Kant: punishment for the CRIME, never merely as a MEANS | LIMIT: strong at Q2/Q3, weak at Q1
- C2 Hegel: crime ANNULS RIGHT; punishment ANNULS THE ANNULMENT | LIMIT: abstract; supplies NO measure of severity
- C3 Bentham; Beccaria: all punishment an EVIL; CERTAINTY and PROMPTNESS over SEVERITY | LIMIT: unconstrained at Q2 and Q3
- C4 The three-question grid | LIMIT: presupposes aim and application can come apart
- C5 Feinberg: PUNISHMENT CONDEMNS, PENALTIES DO NOT | LIMIT: hard treatment then needs a separate justification
- C6 Duff: COMMUNICATIVE SECULAR PENANCE; the STANDING condition | LIMIT: an invitation backed by force
- C7 Foucault: DISCIPLINE and PANOPTICISM | LIMIT: genealogy NOT justification; functional claim CONTESTED; attach to NO actual practice

C8 Restorative justice: harm to PERSONS, REPAIR as response | LIMIT: proportionality varies; POWER IMBALANCE

C9 Braithwaite: STIGMATISING shaming is CRIMINOGENIC | LIMIT: presupposes valued inclusion and willing reacceptance

C10 ORDINAL vs CARDINAL proportionality | LIMIT: ordinal is easier to defend than any cardinal anchor

C11 Arendt: EVIL CAN BE BANAL | LIMIT: psychology of PERPETRATION, NOT degree of GUILT

C12 The five kinds of collective responsibility | LIMIT: political responsibility is contested where citizens had no effective voice

C13 Lemkin 1944; Convention 1948 | LIMIT: the Convention is NARROWER and OMITTS POLITICAL GROUPS; name NO episode

C14 Corruption as betrayal of ENTRUSTED ROLE | LIMIT: the mass-violence analogy is PARTIAL -- state the conditions, concede the disanalogy

C15 Indian penal illustrations, correctly classified | LIMIT: a judgment, report or statute is a DATED LEGAL FACT and NEVER a philosophical proof

C16 Wrongdoing, culpability and defences are SEPARATE | LIMIT: philosophical prerequisites, not a complete legal test

C17 COMPATIBILIST responsibility needs no causal exemption | LIMIT: the threshold of ADEQUATE CONTROL is contestable

C18 The three justificatory logics | LIMIT: mixed theories must explain how components COHERE

C19 RESTITUTION is not the whole of RESTORATION | LIMIT: serious public wrongs still require authoritative condemnation

|
v

GRADED VERDICT FORMULAS -- ADAPT, NEVER REPRODUCE MECHANICALLY

LAYERED -> desert fixes the LIMITS, condemnation the MEANING, communication the ADDRESS, restoration the REPAIR; retribution vs reform is a FALSE ALTERNATIVE

QUESTION-SEPARATING -> the institution is justified by PREVENTION; its application is constrained by DESERT; the dilemma DISSOLVES

FALLIBILITY -> even granting desert, an IRREVOCABLE penalty administered by a FALLIBLE and UNEQUALLY APPLIED process cannot satisfy the very principle of PROPORTIONATE DESERT offered to justify it

STANDING -> legitimacy is CONDITIONAL on the JUSTICE OF THE ORDER that imposes it

CONDITIONAL-APPROPRIATENESS -> restorative process is justified where participation is VOLUNTARY, safety SECURED and NO ENTRENCHED DOMINATION is present

DIFFERENTIATED-RESPONSIBILITY -> leaders, planners, perpetrators, enablers, bystanders and resisters DO NOT BEAR IDENTICAL RESPONSIBILITY; GUILT REMAINS INDIVIDUAL

CRITICAL-QUALIFICATION -> reformatory language is NOT SELF-VALIDATING; a regime can INTENSIFY CONTROL while calling itself REHABILITATIVE, so ASSESS AIMS BY TECHNIQUES

|
v

THE SEVENTEEN TRAPS -- ONE LINE EACH

- [1] every moral wrong is NOT a legal crime
- [2] RETRIBUTION IS NOT REVENGE -- public, proportionate, impartial desert
- [3] never say deterrence is "PROVED" or "DISPROVED" without evidence
- [4] REFORM IS NOT LENIENCY -- it keeps responsibility and proportionate restraint

[5] NOT EVERY MASSACRE IS GENOCIDE -- specific destructive intent is
 decisive
 [6] NO COLLECTIVE GUILT FROM GROUP MEMBERSHIP
 [7] corruption is NOT only bad character NOR only bad structure
 [8] the 2015 LAW COMMISSION REPORT IS ADVISORY, NOT ENACTED LAW
 [9] *BACHAN SINGH* IS A 1980 JUDGMENT, NOT LEGISLATION
 [10] "the right to life has limits" DOES NOT ENTAIL capital punishment --
 NECESSITY and the CUSTODY DISTINCTION remain
 [11] DO NOT PUNISH THOUGHT ALONE -- act/omission, fault, causation, notice
 [12] JUSTIFICATION defends the ACT; EXCUSE concedes wrong and reduces BLAME
 [13] RESPONSIBILITY IS NOT CAUSAL CONTRIBUTION ALONE
 [14] determinism is NOT automatic acquittal; metaphysical freedom is NOT a
 courtroom fact
 [15] RESTITUTION (an outcome) != RESTORATIVE JUSTICE (a process)
 [16] DENUNCIATION ALONE DOES NOT JUSTIFY HARD TREATMENT
 [17] DO NOT IMPORT GANDHI OR RAWLS into penal theory without a stem-specific
 reason
 |
 v
 PYQ LEDGER 2018-2025 -- 12 OF 112 OWNED PARTS
 2018 Q1(e) 10 -> measures to ERADICATE CORRUPTION in Indian democracy
 2019 Q1(d) 10 -> is CORRUPTION NOT A FORM OF MASS VIOLENCE?
 2019 Q4(c) 15 -> does CAPITAL PUNISHMENT WEAKEN SOCIAL JUSTICE?
 2020 Q3(c) 15 -> is RETRIBUTIVE THEORY AGAINST HUMAN RIGHTS?
 2020 Q4(c) 15 -> how far do REGIMES CONDITION CORRUPT PRACTICES?
 2021 Q2(b) 15 -> REFORMATIVE THEORY and HUMAN DIGNITY
 2022 Q1(c) 10 -> is CORRUPTION SYSTEMIC OR ETHICAL?
 2022 Q1(e) 10 -> MORAL JUSTIFICATIONS of CAPITAL PUNISHMENT
 2023 Q4(a) 20 -> SEVERITY PROPORTIONATE TO SERIOUSNESS; the JUVENILE case
 2024 Q3(b) 15 -> CAPITAL PUNISHMENT as an EFFECTIVE DETERRENT
 2025 Q1(a) 10 -> PARTICULARISTIC vs UNIVERSALISTIC standards in corruption
 2025 Q3(a) 20 -> can the RIGHT TO LIFE be ABSOLUTE? (capital punishment)
 DISTRIBUTION -> CORRUPTION 5 | CAPITAL PUNISHMENT 4 | THEORY 2 |
 PROPORTIONALITY 1 | GENOCIDE 0 AND STILL A FULL SYLLABUS OBLIGATION